

IN THE COURT OF APPEAL (CIVIL DIVISION)

Case No: CA-2015-000120

BETWEEN:

MS PRIYA SHARMA

Appellant

- and -

MERIDIAN FINANCIAL SERVICES LTD

Respondent

RESPONDENT'S SKELETON ARGUMENT

A. INTRODUCTION

1. The Respondent denies discrimination and contends that the Appellant was dismissed for genuine performance and conduct reasons unrelated to her protected characteristic or her grievance.

B. RELEVANT FACTS

2. The Appellant's performance issues were documented from June 2023, before any grievance was raised.
3. The grievance was investigated thoroughly and found to be unsubstantiated.
4. The PIP was implemented following documented performance concerns.
5. The Appellant failed to meet the targets set in the PIP despite support.
6. The dismissal decision was taken by a manager unconnected with the grievance.

C. LEGAL FRAMEWORK

7. The relevant statutory provisions are:
- Equality Act 2010, ss.13, 26, 27, 39
 - Employment Rights Act 1996, s.98

D. SUBMISSIONS

8. The Appellant has not established a prima facie case of discrimination.
9. The alleged comparators are not appropriate comparators.
10. The dismissal was for genuine performance reasons.

11. There is no causal connection between the grievance and dismissal.

E. AUTHORITIES

12. The following authorities are relied upon:

- Hewage v Grampian Health Board [2012] UKSC 37
- Madarassy v Nomura International Plc [2007] EWCA Civ 33
- Martin v Devonshires Solicitors [2011] ICR 352

F. RELIEF SOUGHT

13. The Respondent respectfully requests that this Court:

- Dismiss all claims
- Costs

James Roberts KC

Emma Clarke

19 December 2020

This is a synthetic document generated for research and training purposes only. It does not represent a real legal case.